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IN THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS

UNITED STATES) **UNITED STATES ANSWER TO**
) **ASSIGNMENTS OF ERROR**
Appellee)
)
v.) Before Special Panel
)
Air Force Cadet) No. ACM 40324 (f rev)
DEKOTA M. DOUGLAS)
United States Air Force) 3 June 2024
Appellant)

TO THE HONORABLE, THE JUDGES OF THE AIR FORCE COURT OF CRIMINAL APPEALS:

Issues Presented

I.

WHETHER THE CONVENING AUTHORITY ERRED BY CONSIDERING R.H.'S SUBMISSION OF MATTERS WHEN SHE IS NOT A VICTIM UNDER R.C.M. 1106A.

II.

WHETHER THE GOVERNMENT ERRED IN POST-TRIAL PROCESSING BY NOTING THE FIREARM PROHIBITION UNDER 18 U.S.C. § 922 WHEN [APPELLANT] HAS NOT "BEEN DISCHARGED FROM THE ARMED FORCES UNDER DISHONORABLE CONDITIONS."

Statement of the Case

The United States generally accepts Appellant's statement of the case.

Statement of Facts

On 2 September 2021, Appellant was charged with one charge and two specifications of dereliction of duty for negligently failing to refrain from providing alcohol to an underage Cadet, R.H., and having an unprofessional relationship with R.H. in violation of Article 92, Uniform Code of Military Justice (UCMJ). (Charge Sheet, 2 September 2021, ROT, Vol. 1.) He was also charged with

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II.

WHETHER THE GOVERNMENT ERRED IN POST-TRIAL PROCESSING BY NOTING THE FIREARM PROHIBITION WAS TRIGGERED UNDER 18 U.S.C. § 922 WHEN [APPELLANT] HAS NOT "BEEN DISCHARGED FROM THE ARMED FORCES UNDER DISHONORABLE CONDITIONS."

STATEMENT OF THE CASE

The United States generally accepts Appellant's statement of the case.

STATEMENT OF FACTS

On 2 September 2021, Appellant was charged with one charge and two specifications of dereliction of duty for negligently failing to refrain from providing alcohol to an underage Cadet, R.H., and having an unprofessional relationship with R.H. in violation of Article 92, Uniform the sexual assault of R.H. in violation of Article 120, UCMJ. (*Id.*) At a General Court-martial, a panel of members found Appellant guilty of the two dereliction specifications and not guilty of the two sexual assault specifications. (Entry of Judgment, 29 April 2022, ROT, Vol. 1.) Appellant was sentenced to a dismissal, confinement for 31 days, forfeitures of $1,185 per month for one month, and a reprimand. (*Id.*) The 1st Indorsement of the Entry of Judgement (EOJ) noted that Firearm Prohibition was triggered under 18 U.S.C. § 922. (*Id.*)

After this Court's review, the case was remanded, in part because Appellant was not provided with the required time to respond to R.H.'s submission of matters. *United States v. Douglas*, No. ACM. 40324, 2023 CCA LEXIS 502 (A.F. Ct. Crim. App. 5 Dec. 2023) (unpub. op.). On remand, Appellant was provided five calendar days to submit his rebuttal to R.H.'s submission of matters. (Opportunity for Accused to Submit Matters in Rebuttal, 21 December 2023, ROT, Vol. 5.) The next day Appellant submitted his rebuttal. (Response to R.H.'s Submission of Matters, 22 December 2023, ROT, Vol. 5.)

In his rebuttal, Appellant requested that the convening authority not consider R.H.'s submission of matters as he believed she did not qualify as a crime victim under R.C.M. 1106A. (*Id.*) He then rebutted portions of her submission, specifically he argued he did not "trick" R.H. into a friendship with him nor did he "coerce" her into drinking with him. (*Id.*) After receiving Appellant's rebuttal, the convening authority explained he considered both submission of matters, Appellant's and R.H.'s, and Appellant's rebuttal and chose to take no action. (Convening Authority Decision on Action, 3 January 2024, ROT, Vol. 5.)[1]

Code of Military Justice (UCMJ). (Charge Sheet, 2 September 2021, ROT, Vol. 1.) He was also charged with the sexual assault of R.H. in violation of Article 120, UCMJ. (Id.) At a General Court-martial, a panel of members found Appellant guilty of the two dereliction specifications and not guilty of the two sexual assault specifications. (Entry of Judgment, 29 April 2022, ROT, Vol. 1.)

Appellant was sentenced to a dismissal, confinement for 31 days, forfeitures of $1,185 per month for one month, and a reprimand. (Id.) The 1st Indorsement of the Entry of Judgement (EOJ) noted that Firearm Prohibition was triggered under 18 U.S.C. § 922. (Id.)

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[1] The corrected copy of the EOJ also noted that Firearm Prohibition was triggered under 18 U.S.C. § 922. (Entry of Judgment, 14 January 2024, ROT, Vol. 5.)

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Argument

I.

R.H. WAS A VICTIM UNDER R.C.M. 1106A AND THE CONVENING AUTHORITY DID NOT ERR WHEN HE CONSIDERED R.H.'S SUBMISSION OF MATTERS.

Additional Facts

R.H. and Appellant met while they were both cadets at the United States Air Force Academy (USAFA). (R. at 368.) Appellant was an upperclassman and introduced himself to R.H. (*Id.*) Upperclassmen were supposed to be mentors to cadets in lower classes. (R. at 368-70.) After meeting, to communicate with R.H., Appellant requested her snapchat. (R. at 371.) Appellant and R.H. would then spend time talking over Snapchat or Teams, watching movies, and eating together. (R. at 368-390.) At some point, Appellant invited R.H. to a hotel off-base to drink alcohol. (R. at 317.) R.H. declined because she did not feel comfortable being in a hotel room with Appellant. (R. at 364.) But she was willing to drink alcohol with him because she thought it would help her forget her "problems" and "worries" – R.H. had just returned from emergency leave due to a medical emergency concerning her father and the death of her friend. (R. at 364, 373.)

On the weekend of 16 October 2020, Appellant brought R.H. to a secluded area in the woods near USAFA to drink alcohol he provided. (R. at 374-75.) While in the woods, R.H. became so intoxicated that Appellant encouraged her to throw up, which she did, because he was worried he would have to call another cadet for help and he would get in trouble. (R. at 380.)

Following Appellant's finding of guilty, R.H. chose not to give an unsworn statement. (R. at 730.) She did, however, submit matters for the convening authority to consider prior to taking or not taking action. (Victim's Submission of Matters, 2 May 2022, ROT, Vol. 4.) In her submission, R.H. asked the convening authority not to mitigate Appellant's sentence. (*Id.*) She explained she felt he deserved the sentence because his misconduct was the "result of separate and deliberate decisions on his

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ARGUMENT

I.

R.H. WAS A VICTIM UNDER R.C.M. 1106A AND THE CONVENING AUTHORITY DID NOT ERR WHEN HE CONSIDERED R.H.'S SUBMISSION OF MATTERS.

Additional Facts

R.H. and Appellant met while they were both cadets at the United States Air Force Academy (USAFA). (R. at 368.) Appellant was an upperclassman and introduced himself to R.H. (*Id.*) Upperclassmen were supposed to be mentors to cadets in lower classes. (R. at 368-70.) After meeting, to communicate with R.H., Appellant requested her snapchat. (R. at 371.) Appellant and R.H. would then spend time talking over Snapchat or Teams, watching movies, and eating together. (R. at 368-390.) At some point, Appellant invited R.H. to a hotel off-base to drink alcohol. (R. at 317.) R.H. declined because she did not feel comfortable being in a hotel room with Appellant. (R. at 364.) But she was willing to drink alcohol with him because she thought it would help her forget her "problems" and "worries" – R.H. had just returned from emergency leave due to a medical emergency concerning her father and the death of her friend. (R. at 364, 373.)

On the weekend of 16 October 2020, Appellant brought R.H. to a secluded area in the woods near USAFA to drink alcohol he provided. (R. at 374-75.) While in the woods, R.H. became so intoxicated that Appellant encouraged her to throw up, which she did, because he was worried he would have to call another cadet for help and he would get in trouble. (R. at 380.)

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part” when he “trick[ed] [her] into a friendship that he knew was unprofessional and he [took her] to a remote area of the woods where he coerced [her] into drinking an entire pint of hard liquor.” (*Id.*)

Standard of Review

Proper completion of post-trial processing is a question of law, which this Court reviews de novo. *United States v. Sheffield*, 60 M.J. 591, 593 (A.F. Ct. Crim. App. 2004) (citing *United States v. Kho*, 54 M.J. 63, 65 (C.A.A.F. 2000)). Interpretations of statutes and Rules for Courts-Martial are reviewed de novo. *United States v. Valentin-Andino*, 83 M.J. 537, 541 (A.F. Ct. Crim. App. 2023).

Law & Analysis

A victim under Article 6b “means an individual who has suffered direct physical, emotional, or pecuniary harm as a result of the commission of an offense under” the UCMJ. 10 U.S.C. § 806b(b). Under R.C.M. 1106A, a crime victim may submit matters to the convening authority for consideration that may reasonably tend to inform the convening authority’s exercise of discretion under R.C.M. 1109 or 1110. *See* R.C.M. 1106A. DAFI 51-201, *Administration of Military Justice*, dated 24 January 2024, ¶ 20.14 reiterates that in “any case resulting in a guilty finding for an offense that involved a victim who has suffered direct physical, emotional or pecuniary harm, the SJA must ensure the victim is provided an opportunity to submit written matters for consideration by the convening authority before the convening authority considers taking action.”[2]

A. R.H. was a victim under R.C.M. 1106A.

Appellant argues, without citing to any case law, that R.H. was not victim under R.C.M. 1106A. Instead, to support his position, he simply argues there was no evidence at trial that R.H. suffered any “direct physical, emotional, or pecuniary harm as the result of” his charged misconduct. (App. Br. at 5.) However, in *United States v. Brooks*, this Court explained that the “UCMJ and Rules

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[2] A previous version of DAFI 51-201, *Administration of Military Justice*, was in effect at the time of Appellant’s trial. However, this section remains the same.

Following Appellant’s finding of guilty, R.H. chose not to give an unsworn statement. (R. at 730.) She did, however, submit matters for the convening authority to consider prior to taking, or not taking, action. (Victim’s Submission of Matters, 2 May 2022, ROT, Vol 4.) In her submission, R.H. asked the convening authority not to mitigate Appellant’s sentence. (Id.) She explained she felt he deserved the sentence because his misconduct was the “result of separate and deliberate decisions on his part” when he “trick[ed] [her] into a friendship that he knew was unprofessional and he [took her] to a remote area of the woods where he coerced [her] into drinking an entire pint of hard liquor.” (Id.)

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> it is entirely foreseeable that [victim] might have suffered direct emotional or pecuniary harm as a result of Appellant's dereliction of duty. Appellant was [victim's] superior both by virtue of his rank and his position as her instructor. The record indicates he initiated and pursued the relationship with [victim]. Regardless of any independent duty on [victim's] part to avoid such a relationship, Appellant's actions could foreseeably have caused emotional or pecuniary harm to [victim] through damage to her Air Force career or otherwise.

Id. at 13-14. This Court reaffirmed this decision in *United States v. Da Silva*, No. ACM 39599, 2020 CCA LEXIS 213, at *51 (A.F. Ct. Crim. App. 25 Jun. 2020) (unpub. op.).

Similarly, here the record showed that Appellant was the upperclassman and, as such, in a mentorship role, and he pursued and initiated the relationship with R.H., an underclassman. Despite Appellant's claim that there was not any evidence at trial that R.H. suffered any physical, mental, or pecuniary harm, this Court found in *Brooks*, Appellant's actions could "foreseeably have caused emotional or pecuniary harm to [victim] through damage to her Air Force career or otherwise." *Brooks*, 2017 CCA LEXIS 190 at *13. Importantly, the record shows that, following Appellant's misconduct, R.H. was no longer enrolled at USAFA and was attending Embry-Riddle Aeronautical University despite the Academy being her "dream school." (R. at 400.) She also no longer hoped to be an Air Force Officer even though it was something she had "worked for . . . [her] whole life." (R. at 360.)

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A. R.H. was a victim under R.C.M. 1106A.

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[1] A previous version of DAFI 51-201, Administration of Military Justice, was in effect at the time of Appellant's trial. However, this section remains the same.

Even though R.H. chose not to provide an unsworn or lay out bullet points demonstrating the harm Appellant caused her through his actions, it was conceivable that she suffered emotional damage because of Appellant. By considering R.H.'s submission of matters, the convening authority "ensure[d] a potential victim's rights under the law were upheld" and this Court should find that R.H. was a victim under R.C.M. 1106A. *Brooks*, 2017 CCA LEXIS 190 at *14.

B. Even if this Court determines R.H. was not a victim and the convening authority erred by considering her submission of matters, Appellant was not prejudiced.

Even if this Court were to determine the convening authority's consideration of R.H.'s submission of matters was improper, any such error did not prejudice Appellant. Appellant contends that a substantial right was materially prejudiced because he asked for a reduction in confinement, and it was denied. (App. Br. at 7.) But Appellant ignores the severity of his crimes. Appellant committed his misconduct while he was a cadet at the United States Air Force Academy and in a position of trust over an underclassman. This case is distinguishable from *United States v. King*, which Appellant cites to, where this Court found a "colorable showing of possible prejudice" when the "convening authority was empowered to grant the requested commutation of the adjudged reduction in rank and took action without considering matters submitted by [the] [a]ppellant." *United States v. King*, No. ACM. 39927 (f rev), 2023 CCA LEXIS 383, *28-29 (A.F. Ct. Crim. App. 1 Sep. 2023) (unpub. op.). Here, unlike in *King*, the convening authority had Appellant's request for clemency and his rebuttal to R.H.'s submission of matters, which detailed his argument that R.H. was not a victim under R.C.M. 1106A. He was not missing anything. Appellant's sentence appropriately addressed the seriousness of his misconduct and the convening authority chose not to take any action based on all the information. Accordingly, this Court can be satisfied that any errant consideration R.H.'s submission of matters of Court did not have a substantial impact on Appellant's final sentence.

Similarly, here the record showed that Appellant was the upperclassman and, as such, in a mentorship role, and he pursued and initiated the relationship with R.H., an underclassman. Despite Appellant's claims that there was not any evidence at trial that R.H. suffered any physical, mental, or pecuniary harm, as this Court found in Brooks, Appellant's actions could "foreseeably have caused emotional or pecuniary harm to [victim] through damage to her Air Force career or otherwise." Brooks, 2017 CCA LEXIS 190 at *13. Importantly, the record shows that, following Appellant's misconduct, R.H. was no longer enrolled at USAFA and was attending Embry-Riddle Aeronautical University despite the Academy being her "dream school." (R. at 400.) She also no longer hoped to be an Air Force Officer even though it was something she had "worked for . . . [her] whole life." (R. at 360.)

Even though R.H. chose not to provide an unsworn or lay out bullet points demonstrating the harm Appellant caused her through his actions, it was conceivable that she suffered emotional damage because of Appellant. By considering R.H.'s submission of matters, the convening authority "ensure[d] a potential victim's rights under the law were upheld" and this Court should find that R.H. was a victim under R.C.M. 1106A. Brooks, 2017 CCA LEXIS 190 at *14.

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II.

THE 18 U.S.C. § 922 FIREARMS PROHIBITION – WHICH IS CONSTITUTIONAL AS APPLIED TO APPELLANT – IS NEVERTHELESS A COLLATERAL MATTER BEYOND THE SCOPE OF THIS COURT'S JURISDICTION.

Standard of Review

The scope and meaning of Article 66, UCMJ, is a matter of statutory interpretation, which is reviewed de novo. *United States v. Lepore*, 81 M.J. 759, 760-61 (A.F. Ct. Crim. App. 2021).

Law & Analysis

The Gun Control Act of 1968 makes it unlawful for a person to possess a firearm if he or she has, *inter alia*, “discharged from the Armed Forces under dishonorable conditions.” 18 U.S.C. § 922(g)(6). Appellant having been adjudged a dismissal unquestionably falls under section (g)(6). 10 U.S.C.S. § 856 (Charge Sheet, 21 September 2021, ROT, Vol. 1.)

Appellant is not entitled to relief – first and foremost, because his conviction triggers the statute; second because this nation has long barred the possession of firearms by persons who are not law-abiding, responsible citizens; and third, irrespective of whether the statute is constitutional, this Court lacks jurisdiction to grant any relief.

A. Appellant’s sentence, which included a dismissal, triggers 18 U.S.C. § 922(g)(6).

The prime principle of administrative construction is to give effect to the plain meaning of a statute of regulation. *United States v. Blair*, 10 U.S.M.C.A. 161 (1959). “When statutory language is unambiguous, the statute’s plain language will control.” *United States v. Jacobsen*, 77 M.J. 81, 84 (C.A.A.F. 2017) (citations omitted). Where there is ambiguity in terms, then “[t]he meaning of a statement often turns on the context in which it is made, and that is no less true for statutory language.” *United States v. Briggs*, 141 S. Ct. 467, 470 (2020). Here the plain language of 18 U.S.C. § 922(g)(6) states it shall be unlawful for an individual “who has been discharged from the Armed Forces under dishonorable conditions . . . [to] receive any firearm or ammunition which has been

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Yet, Appellant attempts to create a loophole which would prevent 18 U.S.C. § 922(g)(6) from applying until after completion of appellate review.[2] (App. Br. at 10.) This would create an absurd result. Any person who is conviction under one of the nine enumerated categories would be permitted to receive a firearm or ammunition up until appellate review affirms their conviction. But the purpose of the statute is to ban “special risk groups” from having access to shipped or transported in interstate or foreign commerce." 18 U.S.C. § 922(g)(6). Appellant was adjudged a dismissal; therefore the statute was triggered.

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[2] Importantly, Appellant does not argue that a dismissal does not fall under one of the nine enumerated categories which triggers 18 U.S.C. § 922(g), only that the timing is premature.

Yet, Appellant [illegible] a loophole [illegible] 18 U.S.C. § 922(g)(6) from applying [illegible] appellate review.[3] (App. Br. 10.) This [illegible] absurd result: Any person who is convicted under one of the nine enumerated categories would be permitted to receive a firearm or ammunition up until appellate review affirms their conviction. But the purpose of the statute is to ban "special risk groups" from having access to firearms, and requiring the triggering of the statute to be dependent on appellate review is contrary to Congress' intent. Confinement – the deprivation of liberty – is not dependent on such a premise and neither should this. This Court should not be persuaded to deviate from the plain language of the statute and wait until the completion of appellate review to find that Appellant met the requirements of 18 U.S.C. § 922(g)(6).

B. The firearms prohibition is a collateral matter outside the scope of this Court's authority under Article 66, UCMJ.

"The courts of criminal appeals are courts of limited jurisdiction, defined entirely by statute." *United States v. Arness*, 74 M.J. 441, 442 (C.A.A.F. 2015). Article 66(d), UCMJ, provides that this Court "may only act with respect to the findings and sentence as entered into the record under section 860c of this title." 10 U.S.C. § 866(d). It does not authorize this Court to act on the collateral consequences of a conviction, such as the firearms prohibition. And this Court has said as much before. In *United States v. Lepore*, this Court held that the firearms prohibition was a collateral matter outside the scope of this Court's authority under Article 66, UCMJ, and that the Court therefore lacked authority to "direct correction of the 18 U.S.C. § 922 firearms prohibition" on a court-martial order. 81 M.J. at 760-63. In so holding, this Court reasoned that the firearms prohibition "relates to a

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[3] Importantly, Appellant does not argue that a dismissal does not fall under one of the nine enumerated categories which triggers 18 U.S.C. § 922(g), only that the timing is premature.

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firearms, and requiring the triggering of the statute to be dependent on appellate review is contrary to Congress' intent. Confinement – the deprivation of liberty – is not dependent on such a premise and neither should this. This Court should not be persuaded to deviate from the plain language of the statute and wait until the completion of appellate review to find that Appellant met the requirements of 18 U.S.C. § 922(g)(6).

B. The firearms prohibition is a collateral matter outside the scope of this Court's authority under Article 66, UCMJ.

"The courts of criminal appeals are courts of limited jurisdiction, defined entirely by statute." United States v. Arness, 74 M.J. 441, 442 (C.A.A.F. 2015). Article 66(d), UCMJ, provides that this Court "may only act with respect to the findings and sentence as entered into the record under section 860c of this title." 10 U.S.C. § 866(d). It does not authorize this Court to act on the collateral consequences of a conviction, such as the firearms prohibition. And this Court has said as much before. In United States v. Lepore, this Court held that the firearms prohibition was a collateral matter outside the scope of this Court's authority under Article 66, UCMJ, and that the Court therefore lacked authority to "direct correction of the 18 U.S.C. § 922 firearms prohibition" on a court-martial order. 81 M.J. at 760-63. In so holding, this Court reasoned that the firearms prohibition "relates to a reporting mechanism external to the UCMJ and Manual for Courts-Martial," and "was not a finding or part of the sentence, nor was it subject to approval by the convening authority." Id. at 763. "[T]he mere fact that a firearms prohibition annotation, not required by the Rules for Courts-Martial, was recorded on a document that is itself required by the Rules for Courts-Martial is not sufficient to bring the matter within [this Court's] limited authority under Article 66, UCMJ." Id. Just as recently as a few days ago, in United States v. Vanzant, this Court reiterated that "firearm prohibition remains a collateral consequence of the conviction, rather than an element of the finding or sentence, and reporting mechanism external to the UCMJ and Manual for Courts-Martial,” and “was not a finding or part of the sentence, nor was it subject to approval by the convening authority.” *Id.* at 763. “[T]he mere fact that a firearm prohibition notation is [illegible] required by the Rules for Courts-Martial [illegible] the matter within [this Court’s] limited authority under Article 66, UCMJ.” *Id.* Just as recently as a few days ago, in *United States v. Vanzant*, this Court reiterated that “firearm prohibition remains a collateral consequence of the conviction, rather than an element of the finding or sentence, and is therefore beyond our authority to review.” ___ M.J. ___, No. ACM 22004, slip op. at 14 (A.F. Ct. Crim. App. May 28, 2024).

Naturally, Appellant disagrees. According to Appellant, *Lepore* is both distinguishable from the instant case and no longer good law. (App. Br. at 10-11.) Citing the 2019 versions of R.C.M. 1101(a)(6) and R.C.M. 1111(b)(3)(F) – which provide for the inclusion of “[a]ny additional information ... required under the regulations prescribed by the Secretary concerned” in the statement of trial results and entry of judgment, respectively – Appellant suggests that the rules now require the firearms prohibition annotation “by incorporation.” (App. Br. at 11.) But what Appellant fails to realize is that annotation by incorporation has always been the posture, even under the 2016 rules that governed in *Lepore*. R.C.M. 1114(a) in the 2016 Manual for Courts-Martial provided that promulgating orders were to be prepared as set forth in the rule, “[u]nless otherwise prescribed by the Secretary concerned.” At the time the court-martial order at issue in *Lepore* was published, Air Force Instruction 51-201, *Administration of Military Justice*, ¶ 15.30 (18 Jan. 2019), prescribed the following requirement: “‘FIREARMS PROHIBITION - 18 U.S.C. § 922’ must be annotated in the header [of the court-martial order].” *See Lepore*, 81 M.J. at 761. Thus, there is no appreciable distinction between the entry of judgment in this case and the court-martial order in *Lepore*.

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Appellant also avers that Lepore is “no longer controlling” in light United States v. Lemire, in which the Court of Appeals for the Armed Forces ordered the Army to delete an annotation regarding sex offender registration from a promulgating order. 82 M.J. 263 n.* (C.A.A.F. 2022) (decision without published opinion) (App. Br. at 10-11.) Relying entirely on a

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